

Fees

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1

Application and Definitions

1.1

This Part, unless otherwise stated, applies to every _firm_ and every _person_ required to pay a fee to the _PRA_.

1.2

In this Part, the following definitions shall apply:

active capacity

means the capacity of the _syndicate(s)_ under management in the _fee year_ in question, including the capacity of _syndicates_ that are not writing new business but have not been closed off in the year in question.

advanced IRB

means the internal ratings based approach for assessing credit risk referred to in Article 151(4) and (9) of the _CRR_.

advanced measurement approaches or AMA

means advanced measurement approaches to operational risk based on a _firm?s_ own operational risk management systems as referred to in s312(2) _CRR_.

annual funding requirement or AFR

means, in respect of any _fee year_, the total ongoing costs of the _PRA_ as determined by the _PRA_.

application

means a request to the _PRA_, in any format, for the _PRA_ to exercise its functions in relation to the applicant or for approval, waiver or confirmation of any matter relating to the applicant.

best estimate liabilities for fees purposes

means:

1. (1) for _UK Solvency II firms_ in the _general insurance fee block_ (A3), the sum of items entered under row codes R0370, R0380, R0410 and R0420, column code C0180, of template IR.17.01.01 set out in the Reporting Part, plus the item entered under row code R0030, column code C0040, of template IR.12.01.01 set out in the Reporting Part, as reported to the _PRA_ ;

2. (2) for _non-directive firms_ in the _general insurance fee block_ (A3), a _firm?s_ total gross technical provisions as reported to the _PRA_ under item 19 of form 15, or where this is not reported because the _firm_ is a _marine mutual_ under the Insurance Companies ? Reporting Part, item 29 of form M2, or where the _firm_ is a _friendly society_, the

balance sheet entry C3 claims outstanding where this entry is required under the Friendly Societies (Accounts and Related Provisions) Regulations 1994 (SI 1994/1983), and otherwise zero; and

3. (3) for _UK Solvency II firms_ in the _life insurance fee block_ (A4), the item entered under row code R0030, column code C0070, minus the item entered under row code R0030, column code C0040 of template IR.12.01.01 set out in the Reporting Part, minus _corporate pension business_ reported under column code C0180 of template IR.14.01.01 set out in the Reporting Part, and minus $0.35 \times$ _unit-linked business_ which is not also _corporate pension business_ reported under column code C0180 of template IR.14.01.01 set out in the Reporting Part, as reported to the _PRA_.

collection agent

means the agent, currently the FCA, designated from time to time by the _PRA_ to collect and analyse _tariff data_ from _firms_ and to calculate, invoice and collect fees on its behalf.

consumer credit-related activity (ies)

means:

any of the activities 1 (a) ? (m) in Part 2 or 3A; and

advising on regulated credit agreements for the acquisition of land under Article 53DA

of the _Regulated Activities Order_ in the manner specified in Part 3 of the _Regulated Activities Order_ as being relevant to those activities.

core deposit

means core deposits within the meaning of Article 2(2) of the _FSMA_ (Ring-fenced Bodies and Core Activities) Order 2014.

corporate pensions business

means business reported using product ID codes 300-322 for template IR.14.01.01 set out in the Reporting Part.

cross border services

means for _Gibraltar-based firms_ , services provided under an entitlement conferred by the Financial Services and Markets Act 2000 (Gibraltar) Order 2001 in the _United Kingdom_ without using a physical presence there to offer or provide those services.

deposit acceptors fee block

means the _fee block_ for _firms_ whose _Part 4A permission_ includes _accepting deposits_ but does not include either of the following:

1. (1) _effecting contracts of insurance_ ; or
2. (2) _carrying out contracts of insurance_.

designated firms dealing as principal fee block

means _firms_ whose _Part 4A permission_ includes _dealing in investments as principal_ where the _PRA_ has designated ?dealing in investments as principal? a _PRA regulated activity_ in respect of that _firm_.

directive friendly society

means a _friendly society_ that is a _UK Solvency II firm_.

due date for payment

means the due date for payment of any fee under this Part, payment being required in cleared funds on or before 5pm on that day or, where it is not a _business day_ , the next _business day_.

fee block

means _firms_ conducting broadly similar regulated activities grouped together for the purposes of calculating and collecting fees as follows:

A0 - the _minimum fee block_

A1 ? the _deposit acceptors fee block_

A3 ? the _general insurance fee block_

A4 ? the _life insurance fee block_

A5 ? the _Lloyd?s managing agents fee block_

A6 - the _Society of Lloyd?s fee block_

A10 ? the _designated firms dealing as principal fee block_

fee payer

means any _firm_ or _person_ required to pay a fee in accordance with this Part of the Rulebook.

fee tariff (s) or tariff

means a payment or scale of payments in accordance with the _PRA_ ?s fee-charging system.

fee year

means the _PRA?s_ _fee year_ , being twelve months from 1 March in one calendar year to the last day of February in the following calendar year.

first fee year

means the _fee year_ during which a _firm_ becomes authorised or receives an extended _Part 4A permission_ in relation to _PRA-regulated activity_ , but for the purposes of the 2020-21 _fee year_ this does not include _firms_ which are _former incoming EEA firms_ or _former incoming Treaty firms_ and where the same legal entity receives new or extended _Part 4A permission_ in relation to _PRA-regulated activity_ during the course of that _fee year_.

Form ELS

means the eligible liabilities return by which _banks_ and _building societies_ provide information to the _Bank of England_ as required by the Bank of England Act 1998.

foundation IRB

means the internal ratings based approach for assessing credit risk referred to in Article 143(1) of the _CRR_.

Future Banking Data Fee

__means the fee payable for the performance of functions of thePRA arising from a programme known as the Future Banking Data programme, namely a programme designed to improve regulatory data and commissioned by the Bank of

England and the PRA.

Gibraltar-based firms

has the meaning in the Financial Services and Markets Act (Gibraltar) Order 2001.

general insurance fee block

means firms whose Part 4A permission includes effecting or carrying out contracts of general insurance or contracts of long term insurance other than life policies or firms whose Part 4A permission is insurance risk transformation.

gone into run-off

means that an insurer has acquired the following characteristics:

1. (1) it has ceased to effect new contracts of insurance ;
2. (2) its permission for effecting contracts of insurance has been cancelled;
3. (3) its exclusive remaining business is administering its remaining insurance liabilities;
4. and
5. (4) if required to do so, it has submitted a run-off plan to the PRA.

gross written premium for fees purposes

means:

1. (1) for UK Solvency II firms in the general insurance fee block (A3), the item entered under row code R0110, as expressed in column code C0015 where this column is completed for those row codes, of template IR.05.04.01 set out in the Reporting Part, as reported to the PRA ;
2. (2) for non-directive firms in the general insurance fee block (A3), a firm's gross premium written as reported to the PRA under item 11 of form 11, or where this is not reported because the firm is a Swiss general insurer or holds a relevant waiver , the entry at sheet 1, line 1, column 1, of form 20A, or where the firm is a friendly society , the income and expenditure account entry for gross premium written or contributions as income receivable, as appropriate under the Friendly Societies (Accounts and Related Provisions) Regulation 1994 (SI 1994/1983); and
3. (3) for UK Solvency II firms in the life insurance fee block (A4), the item entered under row code R0030, column code C0070 of template IR.05.03.01 set out in the Reporting Part minus corporate pensions business reported under column code C0060 of template IR.14.01.01 set out in the Reporting Part, and minus 0.35 x unit-linked business which is not also corporate pensions business reported under column code C0060 of template IR.14.01.01 set out in the Reporting Part, as reported to the PRA.

Group internal model

means the internal models referred to in Articles 230 and 231 of the Solvency II Directive.

insolvency proceedings

means:

1. (1) any proceedings under the Insolvency Act 1986 or Companies Act 2006 to have a firm declared insolvent or to wind up its business including, without limitation, administration, company voluntary arrangement, scheme of arrangement, receivership, administrative receivership, liquidation, sequestration or appointment of a trustee in bankruptcy;
2. (2) any proceedings under the Banking Act 2009 special insolvency regime; or

3. (3) any equivalent process in any jurisdiction outside the _United Kingdom_.

insurance business transfer scheme

means a scheme to transfer the whole or part of the business of an _insurance undertaking_ or _member or former member_ of the _Society_ which meets the conditions of Part VII _FSMA_ or, where applicable, the Financial Services and Markets Act 2000 (Control of Transfers of Business Done at Lloyd's) Order 2001(SI 2001/3626).

internal model method or IMM

means the internal approach to counterparty credit risk referred to in Article 283 of the _CRR_.

Internal models approach or IMA

means the internal models approach referred to in Article 363 of the _CRR_.

late payment interest

means interest at the rate of 5% per annum above the official bank rate of the _Bank of England_ from time to time in force.

life insurance fee block

means _firms_ whose _permission_ includes _effecting_ or _carrying out contracts of insurance_ which are, or include, _life policies_ or entering into a funeral plan contract as provider.

life policy

means:

1. (1) a _contract of long-term insurance_ other than a _pure protection contract_ ;
2. (2) a _long-term care insurance contract_ which is a _pure protection contract_ ; and
3. (3) a _pension term assurance policy_.

Lloyd's managing agents fee block

means _firms_ whose permission includes managing the underwriting capacity of a _syndicate_ as a _managing agent_ at the _Society_.

model maintenance fee

means the fee or fees in 3.22.

modified eligible liabilities or MELs

means:

1. (1) for _banks_ and _building societies_ their modified eligible liabilities relating to business conducted out of offices in the _United Kingdom_ , calculated in accordance with the following formula:

$$1. (1 + 2 + 3 + 4 + 0.65 + 6 - 8 - 9A - 9B - 10A - 10B - 10C - 11A - 11B - 0.612) + (1/3)(F1 + F2 + F3 + F4 + 0.6F5 + F6 - F8 - F9A - F9B - F10A - F10B - F10C - F11A - F11B - 0.6F12)$$

2. $\sqrt[3]{13M}$

3. where each variable refers to an entry in Item B of _Form ELS_ ;

4. and

5. (2) for _credit unions_ , modified eligible liabilities relating to their _United Kingdom_ business only, being deposits

with the _credit union_ (that is its share capital) less the _credit union?s_ bank deposits (investments + cash at bank).

minimum fee block

means the _fee block_ comprising all _firms_ referred to in Table I of the _Periodic Fees Schedule_.

new authorisations

means any _application_ , or granting of an _application_ , for (1) a _Part 4A permission_ which includes a _PRA regulated activity_ or (2) a _top-up permission_ which includes a _PRA regulated activity_.

passport activity

means:

1. (1) for _former incoming EEA firms_ and _former incoming Treaty firms_ , an activity carried on under an EEA right or Treaty right, prior to _IP completion day_ , and subsequently under any legislative provision which replaces it;
2. (2) for _Gibraltar-based firms_ , an activity carried out under an entitlement conferred by the Financial Services and Markets Act 2000 (Gibraltar) Order 2001.

pension term assurance policy

means a _personal pension policy_ which is a _pure protection contract_ and in connection with which tax relief is available under Chapter 4 of Part 4 of the Finance Act 2004.

periodic fee(s)

means the fee or fees payable in accordance with Chapter 3.

Periodic Fees Schedule

means the schedule of _periodic fees_ annexed to Chapter 3, which is replaced annually following the _PRA_ ?s fee rates consultation.

personal pension policy

means a _pension policy_ under which contributions (single or regular) are paid to a _personal pension scheme_.

pure protection contracts

means:

1. (1) a _contract of long-term insurance_ in respect of which the following conditions are met:
 1. (a) the benefits under the contract are payable only on death or in respect of incapacity due to injury, sickness or infirmity;
 2. (b) the contract has no surrender value, or the consideration consists of a single premium and the surrender value does not exceed that premium; and
 3. (c) the contract makes no provision for its conversion or extension in a manner which would result in it ceasing to comply with (a) or (b); or
2. (2) a _reinsurance contract_ covering all or part of a risk to which a _person_ is exposed under a _contract of long-term insurance_ that meets the conditions in (1).

retribution

means the process under which an _insurer_ seeks to redefine the rights and interests of policy holders.

regulatory transaction fee(s)

means the fee or fees payable in accordance with Chapter 4.

second fee year

means the _fee year_ commencing on 1 March immediately following the end of the _firm's first fee year_.

special project fee(s) or SPF (s)

means the fee or fees payable in accordance with Chapter 5.

Society of Lloyd's fee block

means the _fee block_ of which the _Society_ and its subsidiaries are members.

Solo internal model

means the internal model referred to in Article 112 of the _Solvency II Directive_.

tariff bands

means broad groupings of business volumes for the purpose of calculating _periodic fees_.

tariff base

means the _PRA_'s methodology for calculating volumes of business for the purposes of determining _periodic fees_.

tariff data

means information about a _firm_'s business used in the calculation of _periodic fees_.

tariff rate

means the rate of fee applied to a particular activity for the purpose of calculating _periodic fees_.

third country branch

means _United Kingdom_ branches of _firms_ which are incorporated elsewhere in the world, excluding Gibraltar.

total assets for fees purposes

means for _firms_ in the _designated firms dealing as principal fee block_ (A10), the sum of the _firm's_ assets as recorded at row 380 of _data item_ template 1.01 of Annex III of the _Supervisory Reporting ITS_.

total operating income for fees purposes

means for _firms_ in the _designated firms dealing as principal fee block_ (A10), the sum of the _firm's_ net operating income as recorded at row 355 of _data item_ template 2 of Annex III of the _Supervisory Reporting ITS_.

unit-linked business

means business reported using product ID codes 102, 112, 122, 132, 202, 212, 222, 232, 302, 312, 322, 622, and 722 for template IR.14.01.01 set out in the Reporting Part.

valuation point

means the relevant date or period for assessing a firm's _tariff data_ and calculating _periodic fees_ under Chapter 3.

2

Obligation to Pay Fees

Fees to be paid in full without deduction on the due date for payment

2.1

All fees must be paid in full and without deduction on the _due date for payment_.

2.2

The _due date for payment_ of:

1. (1) _periodic fees_ is as specified in 3.15;
2. (2) _regulatory transaction fees_ is as specified in 4.2;
3. (3) _special project fees_ is as specified in 5.8.

2.3

As permitted by paragraphs 31(7) and 35 of Schedule 1ZB of _FSMA_ , the _PRA_ may take all steps and seek all remedies available to a creditor to recover, as a debt due to the _PRA_ , any fee or other amount, such as interest, which remains unpaid after it falls due.

2.4

The _PRA_ may take regulatory action in relation to non-payment of fees in addition to, or instead of, any steps taken or remedies pursued under 2.3.

2.5

Fee-payers must comply with directions, whether in an invoice, form, notice or otherwise, of the _collection agent_ when acting in that capacity on behalf of the _PRA_.

Late payment interest

2.6

Subject to 2.8, a _fee payer_ who does not pay the full amount of a fee by the _due date for payment_ will incur _late payment interest_ on any unpaid part of the fee, accruing on a daily basis from the _due date for payment_ until payment is made.

2.7

The _PRA_ will not charge interest on _late payment interest_.

2.8

Late payment interest does not apply to _regulatory transaction fees_ and _special project fees_.

Relieving provisions

2.9

[Deleted.]

2.10

[Deleted.]

3

Periodic Fees

Application, allocation to fee blocks and due date for payment

3.1

Periodic fees are payable in respect of each _PRA_ _fee year_ by any _person_ who is, or becomes, a _firm_ during the _fee year_.

3.2

The amount payable depends upon the _fee block_ to which the _firm_ has been allocated. _Firms_ falling into more than one _fee block_ pay _periodic fees_ in relation to each, other than _firms_ falling within the _A6 Society of Lloyd's_ fee block_ and any other _fee block_ , which pay _periodic fees_ in relation to the _A6 fee block_ only.

Tariff bases, valuation points and the Periodic Fees Schedule

3.3

Periodic fees payable by firms in any fee year will be the sum of the following (so far as applicable to them):

1. (1) a minimum periodic fee at the rate specified in Table IA of the Periodic Fees Schedule;
2. (2) [deleted];
3. (2A) the Future Banking Data Fee calculated in accordance with Table IIA.
4. (3) periodic fees at the rate specified in Table IIIA, subject to any modifications in Table IV and Table V, of the Periodic Fees Schedule calculated as follows:
5. the fee being the total of sums payable in respect of all tariff bands;
6. (4) [deleted]
7. (5) [deleted]; and
8. (6) [deleted.]
9. (7) a model maintenance fee calculated in accordance with Table VIII of the Periodic Fees Schedule.

3.4

The _tariff bases_ and _valuation points_ referred to in 3.3 (3)(a) are:

1. (1) for _firms_ in the _deposit acceptors fee block_ (A1):
 1. (a) if the _firm_ is a _bank_ and reports monthly, average _MELs_ for October, November and December prior to commencement of the _fee year_ ; or
 2. (b) if the _firm_ is a _bank_ and reports quarterly, _MELs_ for the December prior to commencement of the _fee year_ ; or
 3. (c) if the _firm_ is a _building society_ , average _MELs_ for October, November and December prior to commencement of the _fee year_ ; or
 4. (d) if the _firm_ is a _credit union_ , either its _MELs_ for the December preceding the commencement of the _fee

year_ or, in the absence of December _MELs_ its _MELs_ as disclosed by its most recent annual return submitted for regulatory reporting purposes prior to the December preceding commencement of the _fee year_.

2. (2) for _firms_ in the _general insurance fee block_ (A3) the _firm?s_ _gross written premium for fees purposes_ and its _best estimate liabilities for fees purposes_ for the _firm?s_ financial year which ends in the calendar year to 31 December prior to commencement of the _fee year_ , unless the _firm_ is a _UK ISPV_ , in which case the _tariff base_ is not relevant and a flat fee shown in Table IIIA of the _Periodic Fees Schedule_ is payable, noting that:

1. (a) this _tariff base_ (A3) does not include _gross written premium for fees purposes_ and _best estimate liabilities for fees purposes_ on which a _composite firm_ reports data relevant for the _life insurance fee block_ (A4).

2. (b) where any figure used in the calculation of this _tariff base_ (A3) is a negative number, it shall instead be deemed to be zero.

3. (c) in the calculation of the _periodic fee_ due under 3.3(3) for this _fee block_ (A3), the following weightings shall apply:

1. (i) 90% of the _periodic fee_ shall be determined from _gross written premium for fees purposes_ ; and

2. (ii) 10% of the _periodic fee_ shall be determined from _best estimate liabilities for fees purposes_.

3. (3) for _firms_ in the _life insurance fee block_ (A4):

1. (a) for _UK Solvency II firms_ , including _composite firms_ which are also _UK Solvency II firms_ to the extent that they are required to report data used for this _tariff base_ (A4), the _firm?s_ _gross written premium for fees purposes_ and its _best estimate liabilities for fees purposes_ , for the _firm?s_ financial year which ends in the calendar year to 31 December prior to commencement of the _fee year_ ;

2. (b) for _non-directive firms_ , including _non-directive firms_ which are also _composite firms_ to the extent that they come within the _life insurance fee block_ , the _tariff base_ is not relevant to the level of fees due and only the minimum fee as specified in Table IA of the _Periodic Fees Schedule_ is payable.

3. (c) Where any figure used in the calculation of this _tariff base_ (A4) is a negative number, it shall instead be deemed to be zero.

4. (d) in the calculation of the _periodic fee_ due under 3.3(3) for this _fee block_ (A4), the following weightings shall apply:

5. 1. (i) 60% of the _periodic fee_ shall be determined from _gross written premium for fees purposes_ ; and

2. (ii) 40% of the _periodic fee_ shall be determined from _best estimate liabilities for fees purposes_.

4. (4) for _firms_ in the _Lloyd?s managing agents fee block_ (A5), _active capacity_ as reported to the _Society_ for the underwriting year which is in progress at the beginning of the _fee year_.

5. (5) for _firms_ in the _designated firms dealing as principal fee block_ (A10), _total assets for fees purposes_ as at 31 December preceding commencement of the _fee year_ and the _firm?s_ _total operating income for fees purposes_ for the four quarters ending on or before 31 December preceding commencement of the _fee year_. In the calculation of the _periodic fee_ due under 3.3(3) for this _fee block_ (A10), the following weightings shall apply:

1. (a) 50% of the _periodic fee_ shall be determined from _total assets for fees purposes_ ; and

2. (b) 50% of the _periodic fee_ shall be determined from _total operating income for fees purposes_.

6. (6) For all _firms_ , if the data source specified in the applicable _tariff base_ is not available to the _PRA_ for any reason and the same data is available to the _PRA_ from an alternative source, periodic fees applicable to any _firm_ under 3.3(3) will be calculated using that alternative source.

7. (7) For _firms_ in the _designated firms dealing as principal fee block_ (A10), if, despite a _firm_ having complied with its reporting obligations, fewer than four quarters of data for _total operating income for fees purposes_ have been reported to the _PRA_ , the arithmetic mean of the reported data shall be calculated, and multiplied by 4.

3.5

The _periodic fees_ payable by:

1. (1) the _Society_ are as specified in Table IIIA of the _Periodic Fees Schedule._

2. (2) [deleted]

3. (3) [deleted]

Information for assessment of periodic fees

3.6

The following requirements apply to all _firms_ whose activities give rise to _periodic fees_ , other than _firms_ which pay only a flat rate of fee:

1. (1) [deleted]

2. (2) if the _PRA_ does not, on its own behalf or through its _collection agent_ , obtain sufficient, or sufficiently detailed, information, the _PRA_ may obtain this through its general information-gathering powers;

3. (3) [deleted]

4. (3A) for _third country branches_ and _Gibraltar-based firms_ , the information required for the _tariff base_ is in relation to _PRA regulated activities_ of the _firm_ carried on from offices in the _United Kingdom_.

5. (4) as _periodic fees_ in respect of any _fee year_ are calculated on the basis of _firms_ ? _tariff data_ for the previous _fee year_ , there may be insufficient _tariff data_ on which the _periodic fees_ may be calculated under 3.4 where a _firm_ becomes authorised for the first time or undertakes a new _PRA-regulated activity_ , resulting in a significant change to its business. In those circumstances, the _periodic fees_ payable will be calculated in accordance with:

1. (a) 3.7 for _firms_ in their _first fee year_ ;

2. (b) 3.9 and 3.10 for _firms_ in the _deposit acceptors fee block_ (A1), the _general insurance fee block_ (A3) or the _life insurance fee block_ (A4) in their _second fee year_ or any subsequent _fee year_ ;

6. (5) a _firm_ intending to apply any of the methods of calculation in 3.9 must notify the _PRA's_ _collection agent_ by the date specified in 3.6 (1).

7. (6) Unless 3.7 or 3.9 applies, where a _firm_ has not provided sufficient _tariff data_ for any period by reference to which _periodic fees_ are to be calculated, but a valuation is available for the previous period by reference to which _periodic fees_ are to be calculated, the fee should be calculated using the _tariff data_ applicable to the previous period multiplied by 1.10. An administration fee of £125.00 is payable in this case in addition to the minimum fee.

Firms becoming subject to periodic fees during the course of a fee year

3.7

A _firm_ in its _first fee year_ pays _periodic fees_ based on its projected valuation for the first twelve months of its new business as follows:

1. (1) The calculation requires the _firm_ to identify, in Table III of the _Periodic Fees Schedule_ , the _tariff rates_ which will be relevant to it as a result of its new or extended permission and apply the formula in 3.7 (2). The resulting figure will be the _periodic fee_ payable by the _firm_ for its _first fee year_ .

2. (2) The formula referred to at 3.7(1) is $(A+B) \times C$, where:

1. A = the amount arrived at by applying the _tariff rates_ in Table III of the _Periodic Fees Schedule_ to the _firm's_ projected valuation for its first year of new business, as provided to the _PRA_ or its _collection agent_ during the _application_ and data collection process;

2. B = the A.0 minimum fee, unless already paid; and

3. C = the number of calendar months (inclusive) between the calendar month during which the firm received its new or extended permission and the last calendar month of the _fee year_ $\div 12$.

A1, A3 and A4 firms in their second and subsequent fee years where full tariff data not available

3.8

3.9 applies only to firms in the deposit acceptors fee block (A1), the general insurance fee block (A3) or the life insurance fee block (A4).

3.9

Subject to 3.10, where in:

1. (1) its second fee year ; or
2. (2) any subsequent fee year ,

a firm has not submitted tariff data to enable the periodic fees calculation to be made in respect of that fee year , periodic fees will be calculated in accordance with Table A below:

Table A

Deposit acceptors fee block (A1) | Either:

1. (1) if the firm is in its second fee year and received permission relevant to the activity between 1 January in its first fee year and 1 April in its second fee year , apply projected valuations as set out in 3.7;

or

1. (2) apply the formula $(A \div B) \times 12$ to arrive at an annualised figure, where
 1. A = its tariff base , as if its MELS for the month of December prior to commencement of the relevant fee year were its tariff base for the whole fee year ; and
 2. B= the number of complete months in the period referred to in A.

General insurance fee block (A3) and life insurance fee block (A4) | Where under 3.4, the tariff base for an activity is to be calculated by reference to data for the firm's financial year ending on the 31 December before the start of the fee year :

1. (1) a firm which has not completed a full financial year by the start of the fee year should, if it is in its second fee year and received its new or extended permission relevant to the activity between 1 January in its first fee year and 1 April in its second fee year , apply projected valuations as set out in 3.7;
2. (2) if the firm is a UK Solvency II firm outside the scope of item (1) above, and the PRA has either:
 3. 1. (a) not received the necessary tariff data on a timely basis in line with the firm's reporting obligations under the Reporting Part; or
 2. (b) deemed the tariff data received to be incomplete or insufficiently reliable, by reference to a specific firm or across all or part of a fee block ;
4. the PRA may use tariff data from the previous reporting period for the periodic fees calculation; and
5. (3) in any other case, apply the formula $(A \div B) \times 12$ to annualise the tariff data it has available, where:
 1. A = its tariff base calculated by reference to tariff data for the period starting on the date the firm received permission for the relevant activity and ending on the earlier of the 31 December prior to the start of its second fee year or the 31 December prior to the start of the firm's financial year; and
 2. B= the number of complete calendar months in the period referred to in A.

3.10

Except in the circumstances to which 3.9 applies, firms in their second fee year or any subsequent fee year after receiving a new or extended permission must calculate their new or additional liability for periodic fees in accordance with 3.4.

Modifications to periodic fees for _Gibraltar-based firms_ , _non-directive insurers_ and _former freedom of service providers_

3.11

The following modifications to _periodic fees_ will apply:

1. (1) [deleted]
2. (1A) In relation to _Gibraltar-based firms_ , the modifications in 3.7 apply only in relation to the relevant regulated activities of the _firm_ carried on from offices in the _United Kingdom_.
3. (2) _Periodic fees_ in the A3 _general insurance fee block_ and the A4 _life insurance fee block_ payable by _firms_ outside the scope of the _Solvency II Directive_ are subject to the modifications in Table V of the _Periodic Fees Schedule_ , to be applied to the final figure arrived at under 3.3(3) once all other modifications relevant to this part of the _firm's_ _periodic fees_ have been taken into account.
4. (3) [Deleted.]

Firms acquiring businesses from other firms

3.12

Where:

1. (1) a _firm_ (A) acquires all or part of the business of another _firm_ (B) in relation to which a _periodic fee_ would have been payable by B; or
2. (2) A becomes authorised as a result of B's simple change of legal status as defined in 4.5 (4), the following rules apply:
 1. (a) if before the date of the acquisition, B had already paid the _periodic fees_ in relation to the business or part of the business acquired by A, A will not pay a further fee; and
 2. (b) if the acquisition occurs after the _valuation point_ applicable to the business or part of the business acquired as set out in 3.4, A will pay _periodic fees_ in relation to the period following the acquisition as if the acquisition had occurred immediately before the relevant _valuation point_.
3. (3) Where the acquisition involves a calculation of _periodic fees_ for the A4 _life insurers fee block_ :
 1. (a) [deleted];
 2. (b) If any business is transferred to A from B under the procedure set out in Part VII of _FSMA_ and that business would have been included in B's _tariff base_ in the absence of the transfer, that business should be included in A or B's _tariff base_ depending on the date of transfer as required by 3.12(2)(b).
 3. (c) Best estimate liabilities for fees purposes should include all new business transferred from B.

Firms applying to cancel or reduce the scope of their permission before the start of the fee year

3.13

If a firm makes an application to cancel or reduce the scope of its Part 4A permission before the start of a fee year, and if the cancellation or reduction in scope takes effect on or before 31 May of the fee year, the obligation to pay periodic fees under 3.1 will apply as if the relevant cancellation or reduction in scope had also taken effect immediately before the start of the fee year.

No waiver or refund of periodic fees after start of fee year

3.14

Subject to 3.13, if, after the start of the fee year, a firm applies to cancel its Part 4A permission or if a new business activity or event which has given rise to a fee no longer applies to the firm, the firm is still liable to pay and will not be

refunded periodic and other fees for that fee year, other than in cases where the PRA exercises its discretion under section 138A FSMA.

Time of payment

3.15

The due date for payment of periodic fees is as follows:

1. (1) Subject to 3.15 (3), any firm whose total liability for periodic fees in the previous fee year was less than £50,000 must pay the total periodic fee due for the current fee year in full by 1 August.
2. (2) Any firm whose combined total liability for periodic fees payable to the FCA and the PRA in the previous fee year was £50,000.00 or above must pay its periodic fees for the current year in two tranches as follows:
 1. (a) an amount equal to 50% of the PRA periodic fee payable in the previous fee year on or before 1 April in the current fee year; and
 2. (b) the balance of the periodic fee for the current fee year by 1 September.
3. (3) If a firm cancels its Part 4A permission in the way set out in Permissions and Waivers or the PRA has exercised its own-initiative powers to cancel a firm's Part 4A permission, the total amount of periodic fees for the fee year, less any amounts already paid, become payable immediately before the cancellation takes effect.

Extension of time

3.16

A fee payer need not pay a periodic fee on the due date for payment under the relevant provision of 3 if that date falls during a period during which circumstances described in General Provisions 2.2 exist and the firm has reasonable grounds to believe that those circumstances impair its ability to pay the fee, in which case the firm must pay on or before the fifth business day after the end of that period.

Compliance with year-end adjustments to AFR

3.17

Fee-payers must comply with directions from the PRA or its collection agent as to payment of periodic fees arising from any variance between budgeted and actual AFR or any corrections to the AFR once final, audited figures are available in relation to any fee year. As the PRA may determine:

1. (1) a surplus of fee income against AFR may result in a credit to firms or fee blocks; and
2. (2) a shortfall may necessitate a call for additional fees.

3.18

[Deleted.]

3.18A

1. (1) [Deleted.]
2. (2) [Deleted.]
3. (3) [Deleted.]

3.19

[Deleted.]

3.20

[Deleted.]

3.21

[Deleted.]

Model maintenance fee

3.22

3.22 to 3.23 apply to _CRR firms_ and _UK Solvency II firms_.

3.23

In the _fee year_ commencing on 1 March 2018 and subsequent _fee years_ :

1. (1) The _PRA_ will charge a _model maintenance fee_ to recover in whole or part the annual cost to the _PRA_ , as determined by the _PRA_ , of monitoring, reviewing and policy development for _firms?_ models for which permission has been granted under the _CRR_ or the _Solvency II directive_.
2. (2) For _firms_ with one or more models for which permission was granted before 1 March 2018, the _model maintenance fee_ is payable for the _fee year_ commencing on 1 March 2018 and in _fee years_ thereafter.
3. (3) Where a first or additional model permission is granted to a _firm_ on or after 1 March 2018 and during the first six months of any _fee year_ , the _model maintenance fee_ for that model is payable as from the commencement of the first subsequent _fee year_ and in _fee years_ thereafter.
4. (4) Where a first or additional model permission is granted to a _firm_ on or after 1 March 2018 and during in the second six months of any _fee year_ , the _model maintenance fee_ for that model is payable as from the commencement of the second subsequent _fee year_ and in _fee years_ thereafter.
5. (5) The _model maintenance fee_ is calculated in accordance with Table VIII of the _Periodic Fees Schedule_.
6. (6) For a _CRR firm_ or _group_ , the _model maintenance fee_ shall be the sum of all fees applicable to that _firm_ or _group_ for each permitted model type.
7. (7) For _composite firms_ which are also _UK Solvency II firms_ , the _model maintenance fee_ shall be determined by the _fee block_ for which the _firm_ or _group_ pays the largest _periodic fee_ under 3.3(3).
8. (8) For models incorporating more than one _UK firm_ , the _model maintenance fee_ shall be determined by reference to aggregated figures for all _UK firms_ included within the scope of that model, and shall usually be payable by the _firm_ which pays the largest _periodic fee_ under 3.3(3) or otherwise by such _firms_ and in such proportions as the _PRA_ directs. To facilitate the aggregation calculation where a model incorporates one or more _CRD credit institutions_ and one or more _designated investment firms_ within its scope, for each _designated investment firm_ which is also a _UK firm_ , _total assets for fees purposes_ shall be rounded to the nearest £1million, and each £1million of _total assets for fees purposes_ shall be deemed equivalent to £0.4million in _modified eligible liabilities_. Total _modified eligible liabilities_ shall then be added together for all _UK firms_ within scope of the model.
9. (9) The _Society_ shall not be required to pay a _model maintenance fee_.

Periodic Fees Schedule ? Fee Rates and Modifications for the Period from 1 March 2025 to 28 February 2026

TABLE IA MINIMUM PERIODIC FEES RATES

Fee payer | Fee payable (£)

---|---

Credit unions with _MELs_ under £2.0 million: |

With _modified eligible liabilities_ of 0 ? £0.5 million | 0.00

With _modified eligible liabilities_ greater than £0.5 million and less than £2.0 million | 0.00

Non-directive friendly societies which either:

1. (1) fall within the A3, but not the A4, _fee block_ and have, in relation to their A3 activities, _gross written premium for fees purposes_ of 0 - £0.5million and _best estimate liabilities for fees purposes_ of 0- £1.0million; or

2. (2) fall within the A4, but not the A3, fee block; or

3. (3) fall within both the A3 and A4 _fee blocks_ and meet condition (1) above in relation to their A3 activities.

| 0.00

All other firms | 600.00

TABLE II - TRANSITION COSTS ALLOCATION

[Deleted.]

TABLE IIA ? FUTURE BANKING DATA FEE

FIRMS | TARIFF BASE FOR ALLOCATION TO FIRMS

---|---

All firms in the designated firms dealing as principal fee block and all firms in the deposit acceptors fee block, apart from credit unions. | Total periodic fees, excluding the minimum periodic fee, payable by the firm multiplied by 0.01425.

TABLE IIIA ? PERIODIC FEE RATES APPLICABLE TO PRA FEE BLOCKS OTHER THAN THE MINIMUM FEE BLOCK FOR THE FEE YEAR 2025-26

Column 1

Fee block | Column 2

Tariff base | Column 3

Tariff bands | Column 4

Tariff rates

---|---|---|---

A1 deposit acceptors fee block | modified eligible liabilities | Band width (£million of MELs) | Fee payable per million or part million of MELs(£)

>10 ? 140 | 34.975

>140 ? 630 | 34.975

>630 ? 1,580 | 34.975

>1,580 ? 13,400 | 43.719

> 13,400 | 57.709

A3 general insurers fee block

gross written premium for fees purposes, best estimate liabilities for fees purposes | gross written premium for fees purposes | Band width (£million of gross written premium for fees purposes) | Fee payable per million of gross written premium for fees purposes (£)

>0.5 | 429.43

best estimate liabilities for fees purposes | Band Width (£ million of best estimate liabilities for fees purposes) | Fee payable per million of best estimate liabilities for fees purposes (£)

>1 | 28.3

For UK ISPVs the tariff rates are not relevant and a flat fee of £430.00 is payable in respect of each fee year.

A4 Life insurers fee block

gross written premium for fees purposes, best estimate liabilities for fees purposes | gross written premium for fees purposes | Band width (£million of gross written premium for fees purposes) | Fee payable per million of gross written premium for fees purposes (£)

>1 | 227.98

best estimate liabilities for fees purposes | Band width (£million of best estimate liabilities for fees purposes) | Fee payable per million of best estimate liabilities for fees purposes (£)

>1 | 18.88

A5 managing agents at Lloyd's | active capacity | Band width (£million of active capacity) | Fee payable per million of active capacity (£)

>50 | 36.65

A6 Society of Lloyd's | flat fee | N/A | General periodic fee (£)

2,514,958.79

A10 Firms dealing as principal fee block total assets for fees purposes, total operating income for fees purposes | total assets for fees purposes

| Band width (£million of total assets for fees purposes) | Fee payable per million or part million of total assets for fees purposes (£)

N/A | 2.866

total operating income for fees purposes | Band width (£million of total operating income for fees purposes) | Fee payable per million or part million of total operating income for fees purposes (£)

N/A | 360.23

TABLE IV ? MODIFICATIONS TO PERIODIC FEES FOR GIBRALTAR-BASED FIRMS

Fee payer | Discount applied to _periodic fees_

---|---

A1 deposit acceptors fee block | 50%

A3 general insurers fee block | 90%

A4 life insurers fee block | 90%

[deleted.] | [deleted.]

Gibraltar-based firms offering _cross border services_ only | 100%

[deleted.] | [deleted.]

[deleted.] | [deleted.]

TABLE V ? MODIFICATIONS TO PERIODIC FEES FOR NON-DIRECTIVE FIRMS IN THE A1 AND A3 FEE BLOCKS

Fee payer | Discount applied to _periodic fees_ in Table IIIA | [deleted]

---|---|---

A1 deposit acceptors fee block | 0% | [deleted]

A3 general insurers fee block | 11% | [deleted]

[deleted.] | [deleted.] | [deleted.]

TABLE VI ? EU WITHDRAWAL COSTS ALLOCATION

[Deleted]

[Deleted.]

TABLE VIII ? MODEL MAINTENANCE FEES

| Annual fee for _CRR firms_ per model type (£) | Annual fee for _UK Solvency II firms_ per _group_ or _solo internal model_ (£)

---|---|---

Basis of scale, (aggregated figures for all _UK firms_ within the scope of each model or model type) | IMA | IMM | IRB | AMA | A3 fee block | A4 fee block

CRD credit institutions with _modified eligible liabilities_ in excess of £40,000million, or _designated investment firms_ with _total assets for fees purposes_ in excess of £100,000million | 70,000 | 92,500 | 127,500 | 35,000 | - | -

CRD credit institutions with _modified eligible liabilities_ greater than £5,000million and less than £40,000million, or _designated investment firms_ with _total assets for fees purposes_ greater than £12,500million and less than £100,000million | 27,500 | 42,500 | 52,500 | 15,000 | - | -

CRD credit institutions with _modified eligible liabilities_ of £5,000million or less, or _designated investment firms_ with _total assets for fees purposes_ of £12,500million or less | 10,000 | 15,000 | 20,000 | 5,000 | - | -

The sum of a _firm?s_ best estimate liabilities for fees purposes_ and _gross written premium for fees purposes_ is £1,000 million or more for _firms_ in the _general insurance fee block_ (A3), or for _firms_ in the _life insurance fee block_ (A4), £15,000million or more | - | - | - | - | 205,000 | 267,500

The sum of a _firm?s_ _best estimate liabilities for fees purposes_ and _gross written premium for fees purposes_ is greater than £300million and less than £1,000million for _firms_ in the _general insurance fee block_ (A3) or greater than £5,000million and less than £15,000million for _firms_ in the _life insurance fee block_ (A4) | - | - | - | - | 82,500 | 107,500

The sum of a _firm?s_ _best estimate liabilities for fees purposes_ and _gross written premium for fees purposes_ is less than £300million for _firms_ in the _general insurance fee block_ (A3) or less than £5,000million, for _firms_ in the _life insurance fee block_ (A4) | - | - | - | - | 35,000 | 45,000

TABLE IX ? RING-FENCING FEE

[Deleted.]

4

Regulatory Transaction Fees

Regulatory transaction fees ? meaning and application

4.1

This chapter does not apply to _Gibraltar-based firms_ exercising entitlements under the Financial Services and Markets Act 2000 (Gibraltar) Order 2001.

Due date for payment of regulatory transaction fees

4.2

Unless otherwise indicated in 4, the _due date for payment_ of _regulatory transaction fees_ is on or before the application is made.

4.3

Regulatory transaction fees incurred by a _firm_ remain payable even if an _application_ is withdrawn. _Regulatory transaction fees_ once received by the _PRA_, or by the _collection agent_ on its behalf, are non-refundable.

4.4

Chapter 4 shows _regulatory transaction fees_ payable to the _PRA_. As all _PRA_ _firm_ s are dual regulated, fees

may also be payable to the _FCA_.

Regulatory transaction fees for new authorisations

4.5

Regulatory transaction fees for _applications_ for _new authorisations_ are payable in accordance with Table B:

1. (1) [Deleted.]

Table B ? New authorisations

Application type | £

Type 1:

A3 or A4 _fee payer_ which is a _friendly society_ or a _fee payer_ which is an A1 ____credit union__

_ | 1,500

Type 2:

A3 _fee payer_ seeking permission as a _UK_ _insurance special purpose vehicle_

A5 _fee payer_ seeking permission as a _managing agent_ at Lloyd's

| 5,000

Type 3:

A1 _fee payer_ (other than a _credit union_) seeking permission to accept deposits

A3 _fee payer_ (other than a _friendly society_ or _UK ____insurance special purpose vehicle_)

A4 _fee payer_ other than a _friendly society_ | 27,870

Table C ? New authorisations involving consumer credit-related activities [Deleted.]

1. (2) [Deleted.]

2. (3) Where an _application_ for a _new authorisation_ involves a simple change of legal status as defined in 4.5 (4), the fee payable for that _new authorisation_ is discounted by 50%.

3. (4) An _application_ involves only a simple change of legal status under 4.5(3) if it is from an applicant which:

1. (a) is a new legal entity intending to carry on the business, using the same business plan, of an existing _firm_ where the latter has no outstanding regulatory obligations and is cancelling its _Part 4A permission_ ; and

2. (b) will:

1. (i) have the same or a narrower _Part 4A permission_ and the same _branches_ as the _firm_ ;

2. (ii) assume all of the rights and obligations in connection with any of the _PRA_ _regulated activities_ carried on by the _firm_ ;

3. (iii) continue the same compliance arrangements in relation to client assets and client money as the _firm_ except for any changes required only as a result of the change of legal status; and

4. (iv) continue with a risk profile and arrangements for controlling and monitoring risk which will not be materially different from those of the _firm_.

4. (5) [Deleted.]

5. (6) Where a _new authorisation_ under 4.5 or an exercise of entitlements by a _Gibraltar-based firm_ in line with 4.6A

relates to more than one _PRA_ regulated activity_ , a single fee, being the highest applicable _regulatory transaction fee_ , is payable.

6. (7) An _application_ for a _new authorisation_ is not deemed complete until the _regulatory transaction fee_ is paid.

4.5A

A parent financial holding company or parent mixed financial holding company (both within the meaning of s192O of _FSMA_) shall pay a _regulatory transaction fee_ of £2,500 in respect of an _application_ for approval or exemption made under s192Q of _FSMA_ (and such a fee shall be in addition to any other _regulatory transaction fee_ payable).

4.6

[Deleted.]

Variations of Part 4A permission and FCA authorised firms applying to carry on PRA regulated activity

4.7

1. (1) [Deleted.]

2. (2) [Deleted.]

3. (3) Subject to paragraph (4), where a _fee-payer_ or _FCA_ authorised firm seeks to vary its existing _Part 4A permission_ to:

4. 1. (a) include a _PRA regulated activity_ , or

2. (b) include, in relation to a _PRA regulated activity_ , the activity of providing services to retail clients,

5. the fee payable shall be £25,000.00.

6. (4) In a case where the _fee-payer_ or _FCA_ authorised firm seeks to vary its existing _Part 4A permission_ to include a _PRA regulated activity_ described in:

1. (a) _fee block_ A1 in respect of a _credit union_ or _fee block_ A4 in respect of a _friendly society_ , it shall be £1,500.00;

2. (b) _fee block_ A3 in respect of an _ISPV_ or _friendly society_ or _fee block_ A5 in respect of a Lloyd's _managing agent_ , it shall be £5,000.00.

Insurance business transfers under Part VII FSMA

4.8

The transferor seeking regulatory consent for an _insurance business transfer scheme_ under Part VII of _FSMA_ pays a _regulatory transaction fee_ of £25,000, the _due date for payment_ being on or before the date of any _application_ to the _PRA_ for the appointment of an independent expert.

4.9

For the purposes of 4.8 an _insurance business transfer scheme_ involving more than one transferor or transferee may, at the PRA's discretion, be treated as a single scheme to which only one fee will be applied. Where there is more than one transferor they will be jointly and severally liable for the fee.

4.10

A transferor in an _insurance business transfer scheme_ may be liable to pay a _regulatory transaction fee_ under 4.8 and a _special project fee_ under 5 in relation to the same subject matter.

Ceding Insurer's Waiver

4.11

[Deleted.]

Model types

4.12

[Deleted.]

4.12A

4.12A to 4.15A apply to _CRR firms_ and _UK Solvency II firms_.

4.13

[Deleted.]

4.13A

Regulatory transaction fees are payable:

1. (1) as set out in 4.14A where a _CRR firm_ seeks permission from the _PRA_ in its capacity as _United Kingdom_ regulator or consolidating supervisor to use one of the model types referred to in 4.14A which require consent under Part Three of the _CRR_ ;
2. (2) as set out in 4.14B where any of the following applications are made which require consent under Title I or Title III of the _Solvency II Directive_ :
 1. (a) a _UK Solvency II firm_ seeks permission from the _PRA_ in its capacity as _United Kingdom_ regulator for permission to use a _solo internal model_ ;
 2. (b) a _UK Solvency II firm_ seeks permission from the _PRA_ in its capacity as Solvency II group supervisor for permission to use a _group internal model_ ; or
 3. (c) a _Solvency II undertaking_ seeks permission from its group supervisor to use a _group internal model_ which includes within the model's scope one or more _UK Solvency II firms_.

4.14

[Deleted.]

4.14A

1. (1) Where a _CRR firm_ seeks permission to apply any model type the fee payable is as set out in Table D below.

Table D - Model types underCRR

Applicant

(groupings based on tariff data submitted by firms as at 31 December in the fee year prior to the fee year in which the fee is payable). | Fee payable (£)

---|---

Where the application relates to CRD credit institutions or designated investment firms and includes five or more significant overseas entities within the same group. | model type | £

advanced IRB, IMM or IMA | 367,500

foundation IRB | 317,500

AMA | 245,000

Where the applicant:

1. (1) has modified eligible liabilities in excess of £40,000million; or
2. (2) is a designated investment firm with total assets for fees purposes in excess of £100,000million.

| model type | £

advanced IRB, IMM or IMA | 312,500

foundation IRB | 267,500

AMA | 195,000

Where the applicant:

1. (1) has modified eligible liabilities greater than £5,000million and less than £40,000million; or
2. (2) is a designated investment firm with total assets for fees purposes greater than £15,000million and less than £100,000million.

| model type | £

advanced IRB, IMM or IMA | 127,500

foundation IRB | 97,500

AMA | 72,250

Where the applicant:

1. (1) has modified eligible liabilities of £5,000million or less; or
2. (2) is a designated investment firm with total assets for fees purposes of £15,000million or less.

| model type | £

advanced IRB, IMM or IMA | 57,500

foundation IRB | 40,000

AMA | 35,000

4.14B

1. (1) Where a _UK Solvency II firm_ or a _Solvency II undertaking_ seeks permission for an _internal model_, the fee payable is as set out in Table E below, subject to 4.14B(2) and 4.14B(3).
2. (2) Where a _firm_ or a _group_ falls within both the _general insurance fee block_ and the _life insurance fee block_, the fee payable is the greater of the fees due under each _fee block_.
3. (3) Where a _Solvency II undertaking_ seeks permission for a _group internal model_ which includes one or more _UK Solvency II firms_ within its scope, the fee is calculated using aggregated tariff data for all in-scope _UK Solvency II firms_, and is payable by such of those _firms_ and in such proportions as the _PRA_ directs.

Table E ? Internal model application fees

****Applicant**

(groupings based on tariff data submitted by firms as at 31 December in the fee year prior to the fee year in which the fee is payable) | Fee payable (£)**

---|---

Group Internal Model(Full and Partial)

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for groups in the general insurance fee block of £1,000million or more | 337,500

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for groups in the general insurance fee block greater than £300million and less than £1,000million | 127,500

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for groups in the general insurance fee block less than £300million | 65,000

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for groups in the life insurance fee block of £15,000million or more | 337,500

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for groups in the life insurance fee block greater than £5,000million and less than £15,000million
| 127,500

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for groups in the life insurance fee block less than £5,000million | 65,000

Solo Internal Model(Full and Partial)

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for firms in the general insurance fee block of £1,000million or more | 297,500

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for firms in the general insurance fee block greater than £300million and less than £1,000million | 107,500

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for firms in the general insurance fee block less than £300million | 55,000

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for firms in the life insurance fee block of £15,000million or more | 297,500

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for firms in the life insurance fee block greater than £5,000million and less than £15,000million | 107,500

Sum of best estimate liabilities for fees purposes and gross written premium for fees purposes for firms in the life insurance fee block less than £5,000million | 55,000

4.15

[Deleted.]

4.15A

The due date for payment under 4.12A to 4.14B is as follows:

1. (1) where the application is made directly to the _PRA_ , on or before the application is made;
2. (2) within 30 days after the _PRA_ notifies a _CRR firm_ that its _EEA_ parent's consolidating supervisor has requested assistance; or
3. (3) within 30 days after the _PRA_ notifies a _UK Solvency II firm_ that it has received a copy of a group internal model application from the Solvency II group supervisor which includes the _UK Solvency II firm_ within its scope.

Skilled persons

4.16

Where the _PRA_ has given notice to a _fee payer_ of its intention to itself appoint a _skilled person_ to:

1. (1) provide it with a report pursuant to section 166(3)(b) of _FSMA_ ; (including as applied by section 312P of FSMA); or
2. (2) collect or update information pursuant to section 166A(2)(b) of _FSMA_ (including as applied by section 312P of FSMA);

the fee will be the amount invoiced by the skilled person.

[Note : section 312P of FSMA applies section 166 of FSMA (Reports by skilled persons) in relation to critical third parties

and persons connected with critical third parties and applies section 166A of FSMA in relation to critical third parties]

4.17

The due date for payment by the firm, critical third party or person connected with a critical third party is 30 days from the date of each invoice from the PRA to the firm, critical third party or person connected with a critical third party.

5

Special Project Fee for Restructuring

Application

5.1

In the circumstances described in this Chapter, a firm may be required to pay a special project fee for restructuring in addition to the other fees that it pays.

5.1A

In this Chapter ? firm ? includes an FCA authorised firm seeking to vary its Part 4A permission to include a PRA regulated activity.

Events giving rise to an SPF for restructuring

5.2

An SPF for restructuring becomes payable by a firm if it engages, or prepares to engage, in activity which involves it undertaking or making arrangements with a view to any of the following:

1. (1) raising additional capital; or
2. (2) a significant restructuring of the firm or the group to which it belongs, including without limitation:
 1. (a) mergers or acquisitions;
 2. (b) reorganising the firm's group structure;
 3. (c) retribution ;
 4. (d) a significant change to the firm's business model; and
 5. (e) a significant internal change programme.

5.3

No SPF for restructuring is payable if the transaction only involves the firm seeking to raise capital within the group to which it belongs.

5.4

An SPF for restructuring may also be payable by a firm if:

1. (1) the firm becomes subject to insolvency proceedings or steps are taken by someone entitled to do so to commence insolvency proceedings against the firm ; or
2. (2) either the Bank of England or HM Treasury has exercised a stabilisation power in respect of the firm under the Banking Act 2009.

5.5

The _PRA_ and the _FCA_ will levy separate _SPFs_ for restructuring and may do so in relation to the same event or circumstance.

5.6

SPFs for restructuring, once paid, are non-refundable.

Payment calculation

5.7

The SPF for restructuring is calculated as follows:

1. (1) Determine the number of hours, or part of an hour, taken by the PRA in relation to regulatory work conducted as a consequence of the activities referred to in 5.2 or 5.4. The number of hours or part hours is as recorded on the PRA's systems in relation to the work.

2. (2) Next, multiply the applicable rate in the table of SPF hourly rates below by the number of hours or part hours arrived at under 5.7(1):

3. SPF hourly rates

Pay grade of persons employed by the _PRA_ | Hourly rate

Administrator | £70

Associate | £155

Technical specialist | £225

Manager | £300

Any other persons employed by the _PRA_ | £415

4. (3) Then add any fees and disbursements invoiced to the _PRA_ by any third party provider in respect of services performed for the _PRA_ in relation to assisting the _PRA_ in performing the regulatory work referred to in 5.2 and 5.4.

5. (4) The resulting figure is the fee.

6. (5) Where an SPF for restructuring is charged and the restructuring directly affects more than one firm, the PRA may combine the total fees calculated under 5.7(4) in relation to that restructuring and reapportion those fees among all firms directly affected by the restructuring, using metrics which, in the opinion of the PRA, reflect the firms' relative nature, scale and complexity.

Due date for payment and ongoing obligation in relation to _SPFs_

5.8

The _due date for payment_ of an _SPF_ for restructuring is 30 days from the date of each invoice from the _PRA_ to the _firm_.

5.9

The obligation to pay an _SPF_ for restructuring is ongoing. There is no limit to the number of times that the _PRA_ may invoice a firm for the _SPF_ for restructuring in relation to the same events or circumstances.

5.10

The _SPF_ for restructuring is a single fee which may be payable under both 5.2 and 5.4.